

Wolson vs Anjali

Author: Sonia Gokani

Bench: Sonia Gokani

SCA/17262/2011 7/ 7 ORDER

IN
THE HIGH COURT OF GUJARAT AT AHMEDABAD

SPECIAL
CIVIL APPLICATION No. 17262 of 2011

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WOLSON
VISHVAS HARRY - Petitioner(s)

Versus

ANJALI
, D/O BABUBHAI PANDAV - Respondent(s)

=====

Appearance :
MR
MAKBUL I MANSURI for
Petitioner(s) : 1,
MRCRMISHRA for Respondent(s) :
1,
=====

CORAM

:

HONOURABLE

MS JUSTICE SONIA GOKANI

Date
: 24/04/2012

ORAL
ORDER

1. This petition is preferred challenging the order of the Family Court passed below Exhibit 9 in Family Suit No. 1529 of 2009 dated 30th July 2011.

1.1 To briefly state the facts : The petitioner herein is the original applicant before the Family Court who preferred Family Suit under section 32 of the Indian Divorce Act, 1869 for restitution of conjugal rights. It is the say of the petitioner that he married the respondent original opponent on 6th June 2002 as per the Christian Rites and Rituals and two children were begotten of the said wedlock. On 6th September 2009 the respondent alleged to have left the home of the petitioner and started living with her step mother at Himmatnagar. She also never cared for the children and therefore notice was issued in the month of November 2009 asking the respondent to fulfill her obligation of conjugal rights. Reply to which was received and thereafter the said suit was filed being Family Suit No.1529/2009.

2. An application was preferred by the respondent vide Exh. 9 for alimony as well as for expenses. An application under section 125 of the Criminal Procedure Code for maintenance was also preferred being Criminal Misc. Application NO. 1555/2010.

3. The petitioner since decided not to pursue the proceedings of the Family Suit a purshis was filed for withdrawal of the said suit which was accepted with a noting "recorded" however, to the dismay of the petitioner the Court granted application preferred by the respondent and directed the petitioner to pay the amount of Rs 1,500/- per month to the respondent and Rs 1,000/- to both the children vide its order dated 22nd April 2010 as also a sum of Rs 2000/- to legal expenses and Rs 200 towards lodging and boarding charges for every adjournment when the respondent visited the Family Court.

3.1 On 18th October 2011 when the petitioner learnt about such order and certified copy was asked for and this petition has been preferred challenging the legality, propriety and reasonableness of such an order.

4. Learned advocate Mr. Mansuri appearing for the petitioner fervently urged that Section 24 of the Hindu Marriage Act would never apply to the case of the present petitioner and therefore the Court had wrongly applied the provisions of Section 24 of the Hindu Marriage Act and therefore, the entire order is to be quashed. He further urged that such an order could not have been passed when the petitioner had chosen to withdraw the petition for restitution of conjugal rights.

5. A purshis preferred by Exh. 12 has also been pressed into service to point out that Court at an initial stage had recorded such a purshis and kept the matter for hearing. And , thereafter further

order was passed.: "Today applicant is absent and this purshis not recorded". The order has been passed on 30th July 2011. It also appears that certified copy when was obtained on 18th October 2011 the Court has merely endorsed "recorded" on purshis by passing order below Exh. 12. However, subsequently on 25th November 2011 the order as mentioned hereinabove has been passed.

5.1 The Court once having recorded the purshis could have passed a further order instead of erasing such order at a later date. During the pendency of any application for interim alimony, any withdrawal could not have been permitted by simply recording the same. The possibility cannot be ruled out that on having realised such a mistake, the Court chose to decide the application on merit which was pending as having been earlier referred by respondent wife vide Exh. 9. It in fact was necessary for the Court to decide an application on merit as withdrawal of petition by the husband possibly was with a view to defeat the right of interim alimony asked for by the respondent wife, and the same cannot be endorsed by the Court by giving such a permission without deciding the request of interim alimony. Therefore, the Court is procedurally not in error in reviewing its own earlier order. However such an action ought to have been put to the notice of the both the sides. At the same time, it can be noticed from the record that withdrawal of such petition during the pendency of an application for alimony appear to be an attempt to overreach the Court's process.

6. Be that as it may, specific question that has been raised by the petitioner is granted as interim alimony pendentlite under section 24 of the Hindu Marriage Act when in fact the petition was preferred under the Indian Divorce Act, 1869.

6.1 It can be noted from the record that the order under challenge passed below Exh. 9 is in fact the application preferred under section 36 of the Indian Divorce Act for interim alimony as well as the for the expenses. This application preferred by the wife is for the relief of grant of alimony of Rs 5,000/ per month with further request of legal expenses of Rs 10,000/- and Rs 1,000/- for attending to the court at Himmatnagar on every adjournment. She had averred that the applicant is serving in the V.S Hospital and is earning sum of Rs 15,000 to 20,000/- per month.

7. The Court after a detailed discussion of circumstances existing on the record as also considering the documentary evidences produced in support of version of the respondent wife in respect of salary of the petitioner concluded that she is entitled to the sum of Rs 1, 500/- every month towards her maintenance pendent lite with Rs 2000/- towards legal expenses and Rs 200 towards lodging and boarding charges for attending the Court on every adjournment. It is further clarified that amount of interim maintenance granted should be adjusted with the amount of maintenance awarded under section 125 of the criminal Procedure Code.

8. Learned advocate for the petitioner urges this court that the Court had Section 24 of the Hindu Marriage Act in mind all the time and therefore, the order is ex facie, illegal and requires quashment whereas learned advocate Mr. Gupta appearing for the wife urged that Section 36 of the Hindu Divorce Act permits alimony pendent lite in a suit and the wife also can present the petition for expenses of the petition. He further urged that mere wrong mention of provision would not take away the substance of the order. However, he admitted the maintenance granted to the children of

Rs 1000/- each is wrongly awarded as both the children are with the husband.

9. There appears to be two errors evident in the order impugned firstly, the grant of maintenance pendent lite to both the children Rs 1000/- per month when in fact admittedly the children are not with the respondent wife therefore, to that extent, the order requires quashment.

9.1 Secondly, the Court concerned while discussing issues before it instead of referring to Section 36 in the operative portion of the order, it made mention of Section 24 of the Hindu Marriage Act. This apparently is an error however, as rightly pointed out by learned advocate Mr. Sharma that mere wrong quoting of the provision cannot provide the ground for this Court to sustain the version of the petitioner and invoke supervisory jurisdiction to quash and set aside the entire order which infact discussed all pros and cons and has awarded maintenance pendent lite. Therefore also invocation of supervisory jurisdiction under Article 227 would not be necessary for quashing the entire order.

10. Section 36 of the Indian Divorce Act clearly provides alimony pendent lite. In a suit under this Act, whether instituted by husband or wife, the Court on being satisfied about the truth of the statement contained in the petition, has a discretion of making any order on the husband, for the payment to the wife for expenses of proceedings and alimony pending the suit as may deem appropriate and just to the Court.

11. The provision also stipulates the disposal of such petition within 60 days of the service of the husband. Thus, not only the Act provide for interim alimony pendent lite, but, it also expects the Court to act provided within a time frame to ensure that the wife is not left in a destitute condition.

12. As can be noted from the plaint the same was preferred on 29th December 2009 and an application for interim alimony was preferred on 22nd April 2010. Therefore, statutorily also, the Court was required to decide the same within six months ie on or before 22nd October 2010. Although, it was not decided during the said period and on 4th February 2011, the husband petitioner herein chose to withdraw the petition of divorce. The Court could not have permitted the same without deciding the application of maintainance which it was required to adjudicate within stipulated period as mentioned hereinabove however, there is no error in the Court deciding such application after the said purshis of withdrawal was tendered. Neither on procedurality nor in substance, the order impugned can be found faulty, much less on the ground of causing deep prejudice to the petitioner that the interference is warranted.

11. In the light of the above discussion, the order is partly quashed. Order of grant of maintainanance to both the children is hereby quashed and technical defect of wrong reference of Section 24 of the Hindu Marriage Act twice in the operative order stands corrected and be read as section 36 of the Hindu Marriage Act.

12. This petition stands disposed of in the above terms.

(Ms. Sonia Gokani,J.) mary//